Tutorial 1 – Task 1: The Case of Amal Brogal

IER4012 International Human Rights Law

*Answers based on the lecture notes. Points marked **(beyond the notes)** draw on case law, ratification status or treaty articles not covered in the lectures and should be checked against Bantekas/Oette.*

1. What are the sources of international human rights law, and can they all be applied to Brogal's case?

The sources. International human rights law (IHRL) is "a sub-system of public international law," so its sources start with **Art. 38(1) ICJ Statute**: treaties, customary international law (CIL), general principles of law, and judicial decisions and the writings of the most qualified publicists (these last two are subsidiary means). On top of that comes **soft law**: General Comments, recommendations, declarations and guidelines.

Sorting the instruments Brogal cites:

Instrument	Type of source	Binding?	Applies to Iran?	Applies to France?
ECHR	Regional treaty	Yes	**No** (not a Council of Europe state)	**Yes**
ICCPR	UN treaty	Yes	Yes (ratified 1975)	Yes
ICESCR	UN treaty	Yes	Yes (ratified 1975)	Yes
CAT	UN treaty	Yes	**No** (not ratified)	Yes
CEDAW	UN treaty	Yes	**No** (not ratified)	Yes
Nelson Mandela Rules	UNGA resolution (2015)	**No**, soft law	Persuasive only	Persuasive only
Maastricht Guidelines (1997)	Expert document	**No**, soft law	Persuasive only	Persuasive only

Treaties are "based on consent," so a treaty binds only the states that ratified it. "A citizen's level of protection depends on how many instruments [are] ratified." Brogal therefore cannot rely on the ECHR, CAT or CEDAW against Iran. She can rely on all three against France.

Do these sources have the same status? Formally, "there is no hierarchy between the 4 sources of Art. 38." In practice they contribute differently:

- **Treaties** give enforceable obligations and access to monitoring bodies. A breach "can lead to international responsibility."
- **CIL** fills the gaps where Iran has not ratified. The prohibition of torture binds Iran as custom even though Iran is not party to CAT. It is also in ICCPR Art. 7, which Iran has ratified.
- **Soft law** (Mandela Rules, Maastricht Guidelines, General Comments) is not binding. It is interpretive: it shows what humane detention looks like and how to identify violations of economic, social and cultural (ESC) rights, which strengthens the argument.

Do certain rights have a higher status? Yes. **Peremptory norms (jus cogens)** are "so fundamental to the international community that no derogation or restriction is allowed." The **prohibition of torture** is jus cogens, an **absolute** right ("no limitation at any time") and **non-derogable** (ICCPR Art. 4 list; ECHR Art. 15(2)). Compare Brogal's other rights:

- **Qualified rights** can be restricted under criteria set out in the treaty text. Examples are privacy and home (the raid; ICCPR Art. 17, ECHR Art. 8) and freedom of expression (exposing corruption; ICCPR Art. 19).
- **ESC rights** (health, housing, work) are subject to **progressive realisation**. Each still has a **minimum core** and a ban on going backwards (non-retrogression).

2. What categories of rights are involved, and does her situation cover all of them?

First generation: civil and political rights

- Freedom from torture and ill-treatment: abduction by the private party, interrogations and abuse in detention (ICCPR Art. 7; CAT)
- Liberty and security of the person: arbitrary detention (ICCPR Art. 9)
- Fair trial: the criminal case fabricated from information extracted under torture (ICCPR Art. 14)
- Privacy and home: the raid (ICCPR Art. 17)
- Freedom of expression: she was targeted for exposing corruption (ICCPR Art. 19)
- Non-discrimination and equality: inheritance, and the stigma when applying for jobs (ICCPR Arts. 2, 3, 26)
- Protection from refoulement: the threatened extradition (see Q3)

Second generation: economic, social and cultural rights

- Health: medical care for physical and mental harm (ICESCR Art. 12)
- Adequate standard of living, including housing: she is homeless (ICESCR Art. 11)
- Work: rejected by employers (ICESCR Art. 6)
- Social security: France refused assistance (ICESCR Art. 9)
- Equal rights of men and women: inheritance (ICESCR Art. 3; CEDAW Arts. 15–16)

Third generation: solidarity or collective rights. These are **not really engaged**. They are rights of "society or peoples": development, peace, a healthy environment, self-determination. Brogal's claims are individual.

So the answer is no. Her situation covers the first and second generations but not the third. It illustrates that rights are **interdependent and indivisible**: the torture (a civil right) directly causes her health, employment and housing problems (ESC rights).

3. The tripartite typology of state obligations and how it applies

- **Respect**: refrain from interfering yourself (a negative obligation)
- **Protect**: stop third parties from interfering ("linked to the actions of third parties")

- **Fulfil**: create the conditions for people to access their rights, through three parts: **facilitate**, **provide** (the state steps in when people cannot access the right themselves) and **promote** (education and awareness)

Iran

- **Respect, breached.** State agents raided her home, assaulted, detained and tortured her, and fabricated a criminal case. These are direct state violations.
- **Protect, breached.** The *private party's* abduction and torture are not directly the state's acts. But states are the duty-bearers even when non-state actors commit the abuse. Iran failed to prevent, investigate and punish them. **(Beyond the notes)** This is the **due diligence** standard from *Velásquez Rodríguez v Honduras* (IACtHR, 1988).
- **Fulfil / non-discrimination.** Inheritance rules that favour male relatives breach equality obligations (ICCPR Art. 3, ICESCR Art. 3).

France

- **Respect.** France must not extradite her to Iran, where she faces a real risk of torture and an unfair trial. This is **non-refoulement** (CAT Art. 3, ECHR Art. 3, ICCPR Art. 7). **(Beyond the notes)** *Soering v UK* and *Chahal v UK* establish it under the ECHR. Because torture is absolute, no "balancing" against the extradition request is allowed.
- **Protect.** Employers reject her because of stigma. France must protect her against discrimination by **private employers** (effective anti-discrimination law and remedies).
- **Fulfil:**
    - *Facilitate*: give her access to healthcare and the labour market.
    - *Provide*: she is homeless, without resources and cannot meet her needs herself, so France must step in with at least **minimum core** housing, healthcare and social assistance. Refusing minimal aid is hard to justify, even with progressive realisation. Torture victims are also entitled to **rehabilitation** under CAT Art. 14.
    - *Promote*: awareness-raising to reduce the stigma around torture survivors.

4. Does IHRL apply directly in the relevant jurisdictions?

"Directly applicable is not necessarily true. The incorporation of treaties at national level is a matter of national constitutional law." Effectiveness depends on whether a country is **monist or dualist**.

- **France is monist. (Beyond the notes)** Under **Art. 55 of the 1958 Constitution**, ratified treaties take precedence over statutes once published. Brogal can invoke the **ECHR and ICCPR directly** before French courts. **ICESCR provisions** are harder: the Conseil d'État often denies them direct effect, treating them as addressed to the state rather than creating individual rights. Her ESC claims are therefore weaker in French courts than her civil-rights claims.
- **Iran. (Beyond the notes)** Art. 9 of the Civil Code gives ratified treaties the force of law. However, Art. 4 of the Constitution subordinates all laws to Islamic criteria. In practice, international norms that conflict with Iran's interpretation of Sharia (for example on inheritance) are not applied.

Even in a monist system, "directly applicable" is therefore not automatic.

5. Do any rules of international law hinder her claims against Iran?

Yes, several:

1. **State immunity** (the key point; this is why *Al-Adsani* is on the reading list). Iran is a sovereign state, and French courts will generally grant it immunity from civil suit, even for torture. In *Al-Adsani v UK* (ECtHR, 2001), the Court held 9–8 that granting Kuwait immunity in a civil torture claim did not breach Art. 6 ECHR. Torture being **jus cogens** did not override the procedural rule of immunity. The ICJ confirmed this in *Germany v Italy* (2012), and the ECtHR did again in *Jones v UK* (2014). So the hierarchy of norms from Q1 does **not** automatically defeat immunity. Individual officials may in some cases be prosecuted criminally in France under universal jurisdiction (CAT Art. 5), but France is bound by CAT only towards other CAT parties, and immunity issues still arise.
2. **Consent and ratification.** Iran is not party to the ECHR, CAT or CEDAW, and has not accepted individual complaints under the ICCPR (Optional Protocol 1). She has **no treaty-body complaint route against Iran**.
3. **Dual nationality and diplomatic protection.** France would normally protect a national abroad. Traditionally, however, a state cannot exercise diplomatic protection against another state whose nationality the person also holds (Art. 4, 1930 Hague Convention). The ILC Draft Articles on Diplomatic Protection (Art. 7) allow it only if French nationality is **predominant**. Iran does not easily recognise renunciation of Iranian nationality.
4. **Exhaustion of domestic remedies** (an admissibility criterion). Normally she would have to try Iranian remedies first. She can argue these are ineffective or dangerous for her.
5. **Attribution.** For the private abduction, Iran is responsible only for failing to protect (Q3), not for the act itself.

6. What monitoring mechanisms exist, and which is most suitable?

Treaty-based: state reporting, individual complaints, inquiry procedures and inter-state complaints, via committees such as the Human Rights Committee, CESCR, CAT and CEDAW. Individual complaints require that (i) the state is party to the treaty, (ii) the state recognised the committee's competence, and (iii) the admissibility criteria are met.

Charter-based: the **Universal Periodic Review** (all UN members, about every 4.5 years, with NGO input), the **Special Procedures** (independent experts who can visit countries and receive letters about violations), and the **HRC Complaint Procedure** (for gross and systematic violations, including against states that have not ratified the treaties).

Regional: the **European Court of Human Rights (ECtHR)**, with binding judgments.

Most suitable:

- **Against France: the ECtHR**, especially to stop the extradition. Its judgments are binding, and it can order **interim measures** (Rule 39, beyond the notes) to halt removal. Alternatives are the **Committee against Torture** (Art. 22 CAT) or the **Human Rights Committee** (Optional Protocol 1), both of which can request interim measures. For ESC rights, the **CESCR** individual complaint procedure under the

Optional Protocol to the ICESCR, which France has ratified. She must pick one forum: ECHR Art. 35(2)(b) and the bar on the same matter being examined by another body ("some bodies only examine a claim if it has not been addressed by another").

- **Against Iran:** individual complaints are not available (Q5). The realistic routes are charter-based:
  - **Special Procedures**: the Special Rapporteur on the situation of human rights in Iran, the Special Rapporteur on torture, and the **Working Group on Arbitrary Detention**. These act regardless of ratification.
  - The **UPR** of Iran, with NGO submissions.
  - The **HRC Complaint Procedure**, but only as evidence of a consistent pattern. It does not deal with individual cases and gives no individual remedy.

On effectiveness, "real enforcement mechanisms are lacking," so outcomes against Iran depend on its willingness to comply.

7. Universality and cultural relativism

Yes. The clearest example is **inheritance**, where "cultural norms favoured male relatives." Under Iranian law, which is based on Sharia, daughters generally inherit half the share of sons.

- **Universalist view.** The key idea of the system is that human rights "apply always, for everyone and everywhere." Equality in inheritance follows from ICCPR Arts. 3 and 26 and ICESCR Art. 3, both binding on Iran, and from CEDAW Arts. 15–16.
- **Relativist view.** Iran would argue that religious and cultural norms legitimately shape how rights apply. This is also why it has not ratified CEDAW. Saudi Arabia's reservations are a parallel case, as is the UK's own gender-related reservation. Any reservation "cannot be incompatible with the object and purpose of the treaty" (Art. 19 VCLT).
- **The three dimensions:**
  - *Legal*: the norms are universal on paper.
  - *Value*: is gender equality in inheritance universally shared? It is contested.
  - *Empirical*: compliance in practice falls short.
- **Limit of relativism.** No cultural argument can justify the **torture**. That prohibition is absolute and jus cogens, so relativism has no room there.

A related point: the **stigma** she faces in France shows that compliance problems are not only a "non-Western" issue, which links to the critique that human rights were "written by the West."